



Fine Artist / Acrylic & Mixed Media / Pretoria, South Africa

ARAGREEMENT

This agreement is between the Artist (Walt Viviers) and the Gallery, and is to be signed by the Gallery representative. In the event of any conflict between this document and the gallery's own agreement, the terms most favourable to the Artist shall apply.

GALLERY DETAILS

Gallery name:

Gallery phone number:

Gallery address:

Date of this Agreement (day, month, year):

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COMMISSIONS, PRICES, AND PAYMENTS

The Artist and the Gallery will jointly agree upon the retail price of each artwork.

The Gallery's commission for this exhibition is _____% of the agreed retail price.

The Gallery shall pay the Artist all proceeds at the end of the month in which the artwork is sold, or at the latest by the 25th day of the following month of sale, directly to the Artist's nominated bank account.

No sales are guaranteed, and unsold work will be returned to the Artist in the same condition in which it was received.

CUSTODY AND FULL LIABILITY FOR ARTWORKS

The Gallery accepts full and unconditional responsibility for all artworks from the moment they are received from the Artist until they are returned to the Artist or their representative.

The Gallery shall bear sole liability for any loss, theft, damage, or destruction of the artworks while in its custody, including during transport, installation, display, storage, or removal, regardless of whether such loss or damage arises from the negligence, acts, or omissions of the Gallery, its staff, agents, contractors, or visitors.

Should any artwork be lost, stolen, damaged, or destroyed while in the Gallery's custody, the Gallery undertakes to:

(a) Notify the Artist in writing within 24 hours of discovering the loss or damage;

(b) Reimburse the Artist the full agreed retail price within thirty (30) days of notification. Where no retail price has been agreed, reimbursement shall be based on a valuation provided by the Artist, which the Gallery may not unreasonably dispute;

(c) Cover all costs associated with repair or restoration if the artwork is damaged but restorable, subject to the Artist's consent.

The Gallery undertakes to maintain adequate insurance for all artworks in its custody. Proof of insurance shall be provided to the Artist on request before works are delivered.

The no-liability disclaimer in the gallery's standard terms is expressly excluded and replaced in its entirety by this clause.

IMAGE RIGHTS AND PROMOTION

The Gallery may use photographs of the Artist and the Artist's works solely for the purpose of promoting this specific exhibition. Any other use requires the Artist's prior written consent.

ARTIST BIO AND STATEMENT

The Gallery may make minor editorial amendments to the Artist's bio and statement where necessary for publication, but undertakes to retain the original meaning. Any amendments must be approved by the Artist before publication.

RESPONSIBILITIES OF THE GALLERY

The Gallery will professionally install and light the artworks, and will assist with their removal at the close of the exhibition.

If required, the Gallery will keep the work in storage for up to one month after the exhibition closes.

RESPONSIBILITIES OF THE ARTIST

The Artist will assist with installation and collect the work within one month of the exhibition's close.

Artworks must be fitted with appropriate hanging hardware.

The Artist will provide a bio, artist statement, and all required artwork information in advance of the exhibition.

AGREED AND SIGNED

Gallery Representative Name and Title:

Gallery Representative (signature):

Signed by Artist (signature):